AURORA SOFTWARE

CUSTOMER SERVICES

CONTRACT TITLE: Customer Application Service Agreement
CONTRACT ID: C02
CONTRACT TYPE: saas
EFFECTIVE DATE: 2027-01-01
PARTY A: Aurora Software Private Limited (the "Company")
PARTY B: Forge Electronics Private Limited (the "Counterparty")
GOVERNING LAW: India

AGREED COMMERCIAL LETTER

Forge has requested an application service from Aurora. By the acceptance recorded at the end of this letter, the parties adopt the following scope, commitments and allocation of risk.

1 APPLICATION COMMISSION

1.1 Aurora Software Private Limited (P01, Service Supplier) supplies APP-ATLAS to Forge Electronics Private Limited (P02, Customer). APP-ATLAS depends entirely on Forge service SVC-ATLAS identified in Aurora hosting agreement C01. Forge is the hosting provider under C01 and the application customer under C02; these capacities and payment flows remain separate. Company legal notice address: aurora-legal@aurora.example. Counterparty legal notice address: legal@forge.example.

2 LIABILITY BOUNDARY

2.1 The service credits in clause 5.1 of C02 are the sole monetary remedy for unavailability. Do not add speculative lost profits. Recoverable hosting credits under C01 do not reduce the gross amount owed to Forge; show any net illustration separately and label it contingent on recovery.

3 TERM AND FEES

3.1 Signed on 2026-12-16; effective 2027-01-01 through 2027-12-31 inclusive, with no automatic renewal. Forge pays Aurora INR 300,000 monthly by the fifth day at 17:00 UTC. No late charge is specified.

4 TIME AND EVIDENCE

4.1 All dates and times use UTC, with calendar days and no holiday adjustments. Date-only deadlines end at 17:00 UTC. Logs linking SVC-ATLAS to APP-ATLAS are sufficient incident observations for this service chain. Financial amounts exclude taxes.

5 CUSTOMER SERVICE REMEDY

5.1 For each distinct incident of more than 30 consecutive minutes of complete APP-ATLAS unavailability, Aurora owes Forge a service credit of INR 15,000, capped at INR 45,000 per UTC month of outage start. Exactly 30 minutes does not qualify. This credit accrues automatically on restoration; Forge need not file a claim. It is Aurora payable exposure.

6 EXCLUSIONS AND DEPENDENCE

6.1 No maintenance exclusion applies to the service credits in this agreement, even for maintenance approved under C01. Forge failure does not excuse Aurora performance. Separate restoration and outage records distinguish incidents. Duplicates and corrections for one incident do not create additional credits.

7 OFFICE-DEPENDENT SUPPORT

7.1 Throughout the term ending 2027-12-31, Aurora shall maintain the staffed APP-ATLAS support operation at office UNIT-5 covered by lease C05. Relocation requires Forge prior written approval. No relocation approval is attached. The initial C05 lease term ends on 2027-06-30 and has its own renewal and notice provisions.

8 NOTICE AND TERMINATION

8.1 Material breaches other than unavailability require written notice received at aurora-legal@aurora.example and a 10-calendar-day cure period ending at 17:00 UTC on the tenth following date. An uncured breach permits a separate termination notice after the cure deadline.

9 LIMITATION OF LIABILITY

9.1 Service-credit liability is limited to INR 45,000 per UTC calendar month under clause 5.1. Other aggregate liability is capped at INR 1,000,000, except fraud, wilful misconduct and indemnity obligations.

10 MUTUAL THIRD-PARTY PROTECTION

10.1 Each party protects the other against third-party claims and reasonable defense expense caused by its own infringement or unauthorized disclosure. Notice must be prompt and the party seeking protection must cooperate reasonably with the defense.

11 CUSTOMER MATERIAL

11.1 Customer files and application specifications are received in confidence. Each party must limit their use to providing or receiving the application service and bind its permitted staff accordingly. Public information is excluded; the undertaking continues for 3 years after this agreement ends.

12 SERVICE COMPLIANCE

12.1 Each party must comply with laws applicable to its role in application performance. This includes the Digital Personal Data Protection Act, 2023 where applicable and GDPR where its processing scope applies. Personal-data processing requires access controls and a documented incident-response procedure. No ISO certification is promised.

13 SUBSTITUTION OF ENTITY

13.1 Neither party may substitute a new contracting entity without written consent. An affiliate may take an assignment on 30 calendar days written notice, provided the original party continues to answer for performance. A corporate acquisition does not itself amend these terms.

14 EVENTS OUTSIDE CONTROL

14.1 Relief for an event beyond reasonable control is confined to the affected obligations in application performance. The affected party must give written notice within 5 calendar days after discovery, explain causation and provide mitigation evidence. Accrued payments remain payable. Neither an outage nor supplier delay qualifies automatically.

15 OTHER CUSTOMER RELATIONSHIPS

15.1 The parties remain free to enter other arrangements outside the scope of application performance. This agreement grants no exclusivity or non-compete except any restriction expressly stated in this clause.

16 DISCONTINUANCE WITHOUT CAUSE

16.1 Either party may end future application performance for convenience by written notice received at the other party legal notice address at least 30 calendar days before termination. Accrued payment obligations, express survival provisions and the stated conditions of any early-exit fee continue to apply.

17 DISPUTES

17.1 Indian law governs. Pune courts have exclusive jurisdiction for disputes arising solely under C02. A joint proceeding including claims under any other agreement requires a separately signed forum agreement by all relevant parties; no such agreement is attached.

18 OTHER AGREEMENTS

18.1 C02 governs APP-ATLAS subscription services only. A separate agreement between the same parties does not amend, replace, or consolidate C02 unless it expressly identifies the changed provisions. Rights already accrued survive expiry.

19 ACCEPTED ON BEHALF OF THE PARTIES

19.1 Mira Sen for Aurora and Anil Das for Forge record execution on 2026-12-16.

SCHEDULE A - SERVICE COMMITMENTS

Reference	Item	Agreed particulars
Row 1	APP-ATLAS incident	Over 30 minutes: INR 15,000; monthly cap INR 45,000
Row 2	Support location	UNIT-5 through 2027-12-31

AUTHORISED REPRESENTATIVES

For and on behalf of
Aurora Software Private Limited

Signature: _____
Name: Mira Sen
Date: _____

For and on behalf of
Forge Electronics Private Limited

Signature: _____
Name: Anil Das
Date: _____